Case	Title / Nature of Case	
02:00 PM LINE 1		
23-CIV-02684	**TXTSMARTER LLC, ET AL. VS. NURI OTUS**	
TXTSMARTER LLC		DIANE AQUI
NURI OTUS		PRO SE

Plaintiff TXTSMARTER, LLC AND TEXTSMARTER, INC.'s Motion for Evidentiary Sanctions; Request for Monetary Sanctions in the Amount of $6,148.50

TENTATIVE RULING:

The Motion for Evidentiary Sanctions filed by plaintiffs Txtsmarter, LLC and Textsmarter, Inc. and Request for Monetary Sanctions is **DENIED without prejudice** for failure to establish proper service on defendant Nuri Otus. If plaintiffs can demonstrate that service was proper, the motion is **GRANTED** as to the request for monetary sanctions.

A. Proof of Service

The proof of service shows that plaintiffs served defendant electronically. An unrepresented party may consent to electronic service either by: (i) serving a notice on all parties and filing the notice with the court; or (ii) manifesting affirmative consent through electronic means with the court or the court's electronic filing service provider, and concurrently providing the party's electronic address with that consent for the purpose of receiving electronic service. (Code Civ. Proc., § 1010.6, subd. (c)(2)-(3).) The act of electronic filing shall not be construed as express consent. (*Id.*, at § 1010.6, subd. (c)(3).) The court's records do not show a notice filed by defendant consenting to electronic service. Therefore, the court cannot conclude that defendant has been properly served with this Motion.

If plaintiffs claim such consent exists, they must appear and contest the tentative ruling and be prepared to show that defendant consented to electronic service.

B. Plaintiffs' Request for Discovery Sanctions

A trial court has broad discretion in selecting discovery sanctions and considers both the conduct being sanctioned and its effect on the party seeking discovery. (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 992.) In choosing a sanction, the court should attempt to tailor the sanction to the harm caused by the withheld discovery. The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate terminating sanctions. That is, if a lesser sanction fails to curb misuse, a greater sanction is warranted. (*Ibid*.)

Plaintiffs seek evidentiary and monetary sanctions. Specifically, plaintiffs ask the court to preclude any testimony from Otus regarding:

(1) his claim for unpaid wages, including his assertion that he was to be paid $300,000 per year;

(2) any alleged agreement to defer his wages;

(3) any alleged agreement that he was to be paid $300,000 a year;

(4) the amounts he was actually paid;

(5) events leading up to the sale of assets to Txtsmarter, LLC in July/August of 2022 and Otus' resignation as Director and President;

(6) Textsmarter, Inc.'s sale of assets to Txtsmarter, LLC, including Otus' involvement in drafting purchase agreements;

(7) the liabilities assumed by Txtsmarter, LLC as part of the sale;

(8) his failure to turn over specific assets under his control to Txtsmarter, LLC pursuant to the purchase agreements, and alleged defense related thereto; and;

(9) defense of this claim and regarding his interference with contracts after his resignation from Textsmarter, Inc.

(Defts.' Notice, at pp. 1-2; defts.' Mem. at pp. 10-11.)

As an initial matter, evidentiary sanctions do not appear warranted because defendant appeared for his initial deposition, but not his continued deposition. After the court issued its November 17, 2025 Order for defendant to appear for his deposition, plaintiffs took his deposition on November 20, 2025. Defendant's deposition took place at 10:02 a.m. and ended at 3:56 p.m. with the understanding that it would be re-scheduled because the deposition had not been completed. (Aqui Decl., ¶ 23.)

On December 29, 2025, plaintiffs re-noticed defendant's deposition and sent multiple emails to follow up with defendant. Defendant refused to attend unless Eddie Green's deposition (a partner and witness in this case) occurred first. On January 28, 2026, plaintiffs sent a notice of continued deposition and request for production of documents at deposition noticing defendant's deposition for February 11, 2026. Defendant once again responded that his deposition would not go forward until after Green's deposition, demanded Green's availability, and threatened to file a motion for sanctions. Defendant did not serve any objections to the deposition notice or file a motion to quash. (Aqui Decl., ¶ 32.)

Otus has agreed to sit for the continued deposition but appears to be operating under the mistaken assumption that he has the right to take Green's deposition before he completes his own deposition. However, defendant did not object to the notice of continued deposition, did not file a motion for protective order regarding his continued deposition and has not opposed this Motion (although as discussed above it may not have been properly served). Moreover, at a case management conference held on June 10, 2026, plaintiffs' counsel represented that they would provide Otus with dates for Green's deposition. And, at that same hearing, the court ordered Otus to complete his continued deposition. (See June 10, 2026 minute order.) Accordingly, Otus's failure to appear for his continued deposition is without merit.

Although plaintiffs are seeking evidentiary sanctions based on defendant's failure to appear for his continued deposition, they have not provided a copy of the deposition transcript. Instead, plaintiffs' counsel submitted a spreadsheet outlining topics and issues to be covered at the follow-up deposition. (Aqui Decl., exh. B.) The spreadsheet identifies the topics that plaintiffs claim they intended to depose defendant about at his continued deposition. (*Ibid*.) As noted above, plaintiffs seek to exclude evidence pertaining to these nine topics. (*Ibid*.)

The court cannot determine that evidentiary sanctions are warranted simply because plaintiffs' counsel claims these nine topics would have been covered at defendant's continued deposition. Because plaintiffs did not provide a copy of the deposition transcript, the court is being asked to assume that these topics were not covered at defendant's initial deposition, which lasted for approximately six hours. The court will not make assumptions about what questions were or were not asked or about defendant's responses during his initial deposition.

In addition, the court's November 17, 2025 Order denied without prejudice the request to compel the production of document responsive to Requests Nos. 1, 3, 13 and 20 in the Amended Notice of Deposition. The court found plaintiffs failed to address the good cause requirement for production of the documents. (Further, the Amended Notice of Deposition contains 18 requests, and therefore it does not appear that there is a request No. 20; see plaintiffs' Notice of Motion to Compel Depo., filed June 26, 2025, exh. B, Amended Notice of Deposition.) Regardless, plaintiffs' Notice of Continued Deposition for February 11, 2026, which was served by email, contains 24 requests. (Aqui Decl., ¶ 30, and exh. F.) This includes the same requests that the court found plaintiffs failed to establish good cause for compelling (Nos. 1, 3 and 13), along with new requests. Therefore, plaintiffs' continued notice of deposition appears to exceed the scope of the court's prior Order compelling defendant to appear for deposition. In other words, plaintiffs have not shown that evidentiary sanctions are warranted when the scope of their requested document requests exceeds what the court previously ordered.

Assuming plaintiffs can show that service was properly effected the court **DENIES** the requested evidentiary sanctions but **GRANTS** plaintiffs' request for monetary sanctions based on defendant's failure to appear at his continued deposition. Plaintiffs request $6,148.50 in monetary sanctions. This amount is based on 12.3 hours @ $495/hour ($6,088.50) to prepare this Motion. (Leonard Decl.) Plaintiffs also request the $60 filing fee for this Motion. (*Ibid*.) The court reduces that amount to $4,950 (10 hours) plus the $60 filing fee for a total of $5,010, payable within thirty (30) days of notice of entry of this order.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM LINE 2

23-CLJ-05839 WELLS FARGO BANK, N.A. VS. PATRICIA J. FERNANDEZ

WELLS FARGO BANK, N.A. ASHLEY MULHORN
PATRICIA J. FERNANDEZ

Plaintiff Wells Fargo Bank, N.A.'s Motion to Vacate Dismissal Under C.C.P. § 664.6 and Enter Judgment Pursuant to Stipulation

TENTATIVE RULING:

Plaintiff Wells Fargo Bank, N.A.'s unopposed motion to vacate dismissal and enter judgment pursuant to the parties' stipulation against defendant Patricia J. Fernandez is **GRANTED.**

Under Code of Civil Procedure, section 664.6, the court retains jurisdiction in a case pending full performance of the terms of a written settlement agreement and such agreement may then be enforced upon motion of the aggrieved party.

The parties entered into a stipulated settlement agreement which was filed with the court on April 4, 2024. A copy of the agreement is attached as Exhibit 1 to the Declaration of plaintiff's counsel Edgar B. Lopez, Esq., filed in support of the instant motion, which provides that judgment in the sum of $14,548.24 would not be entered against defendant so long as defendant made monthly payments to plaintiff until defendant paid judgment amount in full. (Lopez Decl. exh. 1, ¶¶ 2 & 3.) In the event of default, the parties agreed that the court was authorized to enter judgment in favor of the plaintiff and against defendant in the amount of $14,548.24, plus costs, minus credit for any payments actually made pursuant to the Stipulation. (*Id*., ¶ 8, exh. 1, ¶ 8.) Defendant defaulted after making payments totaling $8,548.24. (*Id*., ¶ 5.) Plaintiff notified her in writing of the default on or about December 30, 2024 and provided her seven days to cure the default pursuant to their agreement. (*Id*., ¶ 6, exh. 1, ¶ 10.)

Defendant's default is uncontroverted thus the court finds that plaintiff establishes being entitled to a judgment of $6,445 under the terms of the parties' settlement agreement (the principal sum of $14,548.24, plus costs of $445, minus credit of $8,548.24 for payments made.)

Judgment in the amount of $6,445 shall be entered against defendant and payable upon entry of this order.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.